

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



The Honorable Barbara J. Beck
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: John Jason Montalvo
CDCR No: G31774
Case No: RIF117525
Date of Sentence: September 3, 2008

Dear Honorable Barbara J. Beck:

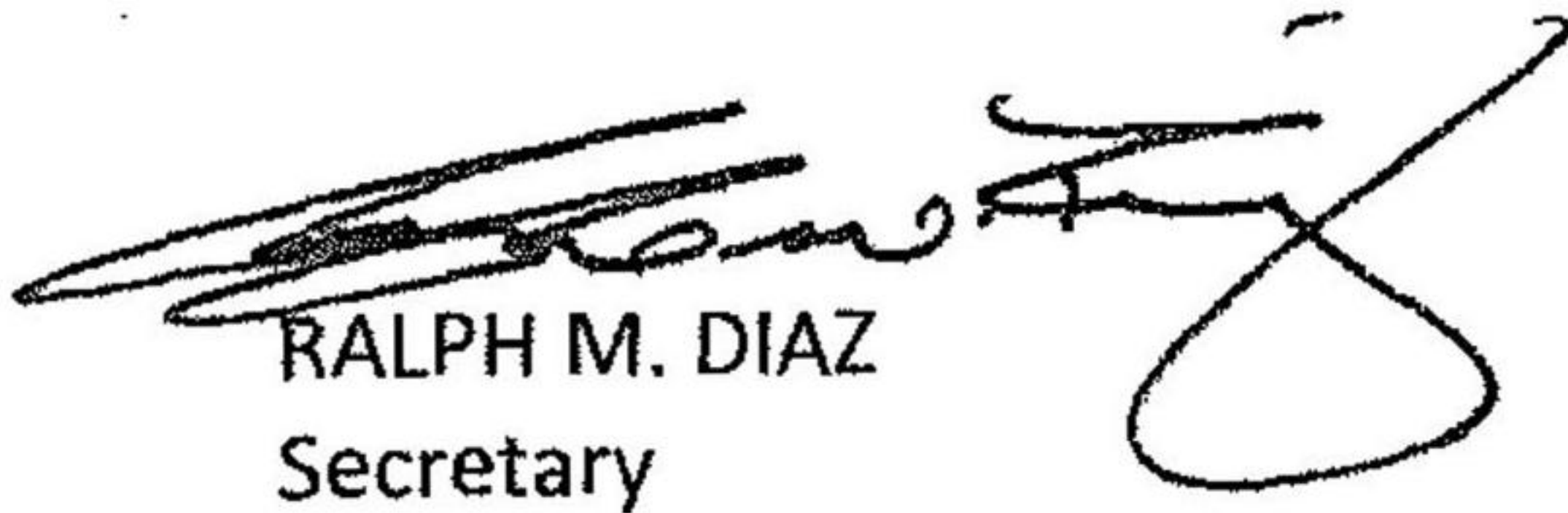
The purpose of this letter is to provide the court with the authority to resentence inmate John Montalvo, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Montalvo is commended for remaining disciplinary free since being received to CDCR on September 9, 2008. Montalvo is currently assigned as an Offender Mentor and received certification from the Addiction Counselor Certification Board of California, certifying that he met the educational requirements, passed the Certified Addiction Treatment Counselor Exam, and is working on the required 2240 supervised clinical hours as a Certified Addictions Treatment Intern. Inmate Montalvo also participates in College (Correspondence), Alternatives to Violence, Alcoholics Anonymous, and Kairos.

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Having reviewed the enclosed documentation it appears that inmate Montalvo's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: W. Samuel Hamrick, Jr., County Court Executive Officer
Riverside County District Attorney's Office
Riverside County Public Defender's Office